

AGREEMENT OF SALE

THIS AGREEMENT OF SALE IS MADE AND EXECUTED ON THIS THE 02ND DAY OF MAY, 2024 BY:-

1. **SMT. MANNE YASHODA, W/O. SRI MANNE LAXMAIAH, D/O. YEROLLA YELLAIAH** AGED ABOUT 59 YEARS, OCC:HOUSE WIFE, R/O. H.NO.1-60, POTHIREDDYPALLY, SANGAREDDY DISTRICT-502 295, T.S. AADHAR NO.5212 6678 0592.
2. **SMT. TALARI KOWSALYA, W/O. SRI TALARI BAGIAH, D/O. YEROLLA YELLAIAH** AGED ABOUT 58 YEARS, OCC:HOUSE WIFE, R/O. H.NO.5-47/1, PATEL GUDA VILLAGE, AMEENPUR MANDAL, SANGAREDDY DISTRICT-502 319, T.S. AADHAR NO.8849 9595 1982.
3. **SMT. RAATNALA JANAAMMA, W/O. SRI RAATNALA YADAGIRI, D/O. YEROLLA YELLAIAH** AGED ABOUT 58 YEARS, OCC:HOUSE WIFE, R/O. H.NO.4-27, AMEENPUR VILLAGE AND MANDAL, SANGAREDDY DISTRICT-502 032, T.S. AADHAR NO.6280 0496 1269.

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4. **SMT. PELAMALI ANANTHA, W/O. SRI PEELEMALI GOVARDHAN, D/O. YEROLLA YELLAIAH** AGED ABOUT 39 YEARS, OCC:HOUSE WIFE, R/O. H.NO.3-99, RUDRARAM VILLAGE VILLAGE, PATANCHERU MANDAL, SANGAREDDY DISTRICT-502 329, T.S. AADHAR NO.9663 4889 0264.
5. **SRI YERROLLA HARINATH, S/O. YEROLLA YELLAIAH**, AGED ABOUT 54 YEARS, OCC: BUSINESS, R/O. H.NO.4-30, AMEENPUR VILLAGE AND MANDAL, SANGAREDDY DISTRICT-502 032, T.S. AADHAR NO.6789 0944 0007.

HEREINAFTER Called the **“LAND OWNERS”**.

Represented by his/her/their Development Agreement cum General Power of Attorney Holder: through **DAGPA** registered as Document No.**10261/2022**, Dated: 16-03-2022 at R.O. Sangareddy, T.S.

ALPHA CONSTRUCTIONS AND INTERIORS (PAN: ABUFA2573P)
REPRESENTED BY ITS PARTNER:

1. **SRI USHKABAVI GANESH, S/O. USHKABAVI BUSHIAIAH**, DOB: 05-06-1986, AGED ABOUT 37 YEARS, OCCUPATION: BUSINESS, R/O. H.NO.B1-63, 1ST FLOOR, HUDA COLONY, CHANDANAGAR, RANGAREDDY DISTRICT-500 050, T.S. AADHAAR NO.5626 2495 0249.
2. **SRI KAILA RAMULU, S/O. KAILA SEENAIAH**, DOB: 28-10-1982, AGED ABOUT 40 YEARS, OCCUPATION: BUSINESS, R/O. H.NO. 20-1559, PAPIREDDY COLONY, CHANDA NAGAR, LINGAMPALLY, RANGAREDDY DISTRICT-500 019, T.S. AADHAAR NO.5347 9471 3282.

HEREINAFTER Called the **VENDOR/DAGPA HOLDER** which expression shall mean and include his/her/their heirs, legal representatives, executors, successors, assignees and administrators of the ONE PART.

IN FAVOUR OF

SRI KONDAVEETI KRANTHI KUMAR, S/O. SIVARAMAIAH KONDAVEETI, (DOB:08-04-1984), AGED ABOUT 40 YEARS, OCCUPATION: PRIVATE EMPLOYEE, R/O. PLOT NO.66. AVANTHI NAGAR THOTA, MOTHI NAGAR, BALANAGAR, SANATH NAGAR, RANGAREDDY DISTRICT-500 018, T.S., AADHAR NO.7829 1133 3632., PAN NO.BYQPK7759F.

HEREINAFTER Called the **VENDEE** which expression shall mean and include his/her/their heirs, legal representatives, executors, successors, assignees and administrators of the ONE PART.

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Whereas the Land owners are the absolute owners, peaceful possessors and in enjoyment of all that the Open Place bearing in Survey No.**413/□**, admeasuring an extent of **1331 Sq.Yds**, which is equivalent to **1112.84 Sq.Mtrs**, situated at **AMEENPUR** village & Mandal, under the city Municipal limits of Ameenpur, Sangareddy District, T.S. having through Ancestral property and registered as Gift Deed vide Document No.**10260/2022**, Dated:16-03-2022, at R.O. Sangareddy, T.S.

Whereas the VENDOR/DAGPA HOLDER is the absolute owner, peaceful possessor and in enjoyment of all that the Open Place bearing in Survey No.**413/V**, admeasuring an extent of **1331 Sq.Yds**, which is equivalent to **1112.84 Sq.Mtrs**, situated at **AMEENPUR** village & Mandal, under the city Municipal limits of Ameenpur, Sangareddy District, T.S. having purchased through Sale Deed and registered as Document No.**8833/2022**, Dated:07-03-2022, at R.O. Sangareddy, T.S.

Whereas the Land owners desirous to develop the above mentioned property for better advantage, proposed to the Developer who is having vast experience in construction field to construct flats/multi-storied residential complexes/apartments and such activities to undertake development of the above mentioned property into Flats.

Whereas the Land owners have jointly entered into the Development Agreement cum General Power of Attorney with the Vendor/DAGPA Holder in respect of all that the Open Place bearing in Survey No.**413/□**, admeasuring an extent of **1331 Sq.Yds**, which is equivalent to **1112.84 Sq.Mtrs**, and in Survey No.**413/V**, admeasuring an extent of **1331 Sq.Yds**, which is equivalent to **1112.84 Sq.Mtrs**, thus the total admeasuring an extent of **2662 Sq.Yds**, situated at **AMEENPUR** village & Mandal, under the city Municipal limits of Ameenpur, Sangareddy District, T.S., vide File No.**007673/BP/HMDA/1559/SKP/2022**, Dated: 10-10-2022, approved by HMDA, Hyderabad, T.S., through **DAGPA** vide Document No.**10261/2022**, Dated: 16-03-2022, registered at R.O. Sangareddy, T.S.

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Whereas the Developer has applied for construction permission in the above said property to construct the multi storied Residential Building/Apartment and obtained construction permission from the **THE METROPOLITAN COMMISSIONER, HMDA, HYDERABAD** for **1 Stilt + 5 Upper Floors** through Building Permit Order vide **File No. 007673/BP/HMDA/1559/SKP/2022,** **Permit No. 007673/BP/HMDA/1559/SKP/2022,** Dated: 10-10-2022, issued by **THE METROPOLITAN COMMISSIONER, HMDA, HYDERABAD.,** Later the Developer started construction of the Residential Apartment named as **“ALPHA HEIGHTS”** consisting of **1 Stilt + 5 Upper Floors** and the construction is in the **Semi-finished Stage.**

Whereas the VENDOR/DAGPA HOLDER is desirous to sell away all that the **Semi-finished Residential Flat bearing No.507, in Fifth Floor,** in the apartment named as **“ALPHA HEIGHTS”,** constructed on **OPEN PLACE,** with a built-up area of **1505 Sq.feet** (including common areas and car parking), along with an undivided share of land admeasuring an extent of **59.33 Sq.Yds.,** (out of total land admeasuring **2662 Sq.Yds.**), roof covered with **R.C.C.,** in Survey Nos. **413/□** and **413/V,** situated at **AMEENPUR** village & Mandal, under the city Municipal limits of Ameenpur, Sangareddy District, T.S., **which comes under the VENDOR/DAGPA HOLDER's share through the above said Development Agreement cum General Power of Attorney vide Document No.10261/2022,** Dated: 16-03-2022, registered at R.O. Sangareddy, T.S. Hereinafter called the Schedule of Property and more clearly described hereunder.

Whereas the VENDOR/DAGPA HOLDER offered to sell away the Schedule Property for a total sale consideration of **Rs.77,39,550/- (Rupees seventy seven lakhs thirty nine thousand five hundred and fifty only)** and the VENDEE also agreed to purchase the Schedule Property for the same consideration and paid an amount of **Rs.7,11,200/- (Rupees seven lakhs eleven thousand two hundred only)** as an advance and the balance amount of **Rs.70,28,350/- (Rupees seventy lakhs twenty eight thousand three hundred and fifty only)** will be paid at the time of registration of Sale Deed i.e., within forty five (45) days from today onwards.

NOW THIS AGREEMENT OF SALE WITNESSETH AS FOLLOWS:-

1. That the VENDOR/DAGPA HOLDER has not handed over the vacant and peaceful physical possession of the Schedule Property to the VENDEE and assures to keep indemnified from all losses, costs, expenses, damages and what so ever may be the VENDEE shall be put into by reason of any defect in the title of the Schedule Property hereby conveyed by the VENDOR/DAGPA HOLDER.

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2. That the VENDOR/DAGPA HOLDER further covenant with the VENDEE that if the VENDEE shall be deprived of whole or any part on account of any defect in the title of the VENDOR/DAGPA HOLDER, the VENDOR/DAGPA HOLDER shall indemnify and compensate the VENDEE against the same.
3. That the VENDOR/DAGPA HOLDER declares that the Schedule Property is free from all encumbrances, charges, sales, gifts, mortgages, court attachments, etc.
4. That there are no legal impediments what so ever for the VENDOR/DAGPA HOLDER conveying the Schedule Property in favour of the VENDEE herein.
5. That the Schedule Property affected by this document is not an assigned property and not covered in the list of 22(A).
6. That the VENDOR/DAGPA HOLDER hereby declared that they will be cleared all the Taxes like electricity bills, water bills, Property Taxes, Income taxes, etc., and dues to the Government in respect of the Schedule Property.
7. That the VENDOR/DAGPA HOLDER hereby declared that they are the absolute owner of the Schedule Property having clear right, title and interest over the land and they are the competent and entitled to alienate the same in favour of the VENDEE.
8. That the VENDOR/DAGPA HOLDER further assures for more perfectly conveying and assuring the Schedule Property and every part thereof in manner aforesaid according to the true intent and meaning of this deed.
9. That the VENDOR/DAGPA HOLDER further agreed to sign all such papers and petitions which shall be required reasonably in getting change of name in the revenue records or in any other concerned departments at the expenses of the VENDEE only.
10. That the VENDOR/DAGPA HOLDER agreed to register the Sale Deed in favour of the VENDEE or his nominee or nominees.
11. That the VENDEE has to bear the Registration expenditure at the time of Registration of the Sale Deed.
12. If the VENDEE fails to complete the registration within 30 days from date of this Agreement of sale, then the company will cancel the booking of flat and the total amount received by the company will be refunded to the VENDEE after deducting the 10% of total amount paid, the refund will be made in 3 months from the date of cancellation.
13. That the VENDEE agreed to pay the balance consideration amount within the stipulated time mentioned above.

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SCHEDULE OF THE PROPERTY

All that the **Semi-finished Residential Flat bearing No.507**, in **Fifth Floor**, in the apartment named as **“ALPHA HEIGHTS”**, constructed on **OPEN PLACE**, with a built-up area of **1505 Sq.feet** (including common areas and car parking), along with an undivided share of land admeasuring an extent of **59.33 Sq.Yds.**, (out of total land admeasuring **2662 Sq.Yds.**), roof covered with **R.C.C.**, in Survey Nos. **413/□** and **413/V**, situated at **AMEENPUR** village & Mandal, under the city Municipal limits of Ameenpur, Sangareddy District, T.S., and bounded by:-

BOUNDARIES FOR ENTIRE PROPERTY:-

NORTH : ROAD & LAND IN SURVEY NO.383 & 414.
SOUTH : LAND IN SY NO.384.
EAST : LAND IN SY NO.413/PART.
WEST : LAND IN SY NO.383.

BOUNDARIES FOR THE FLAT:-

NORTH : OPEN TO SKY.
SOUTH : OPEN TO SKY.
EAST : CORRIDOR.
WEST : OPEN TO SKY.

IN WITNESS WHEREOF the VENDOR AND VENDEE above named have herewith set their hands to this AGREEMENT OF SALE today on the day, month and year first above mentioned.

WITNESSESS:

1. SIGNATURE OF THE VENDOR

2.

SIGNATURE OF THE VENDEE